

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

-----	X	
INTERNATIONAL LONGSHOREMAN’S	:	
ASSOCIATION,	:	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No.: 22-12
	:	
GATEWAY TERMINALS, LLC;	:	
CHARLESTON STEVEDORING COMPANY,	:	
LLC; PORTS AMERICA FLORIDA, INC.;	:	
CERES MARINE TERMINALS, INC.; AND	:	
SSA ATLANTIC, LLC,	:	
	:	
Respondents.	:	
-----	X	

CONSENT MOTION FOR ENTRY OF PROTECTIVE ORDER

Respondents Gateway Terminals, LLC (“Gateway”), Charleston Stevedoring Company, LLC (“CSC”), Ports America Florida, Inc. (“PA”), Ceres Marine Terminals, Inc. (“Ceres”), and SSA Atlantic, LLC (“SSA”) (collectively “Respondents”), with the consent of Complainant, International Longshoreman’s Association, hereby move pursuant to Rule 201(i) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.141(j), for entry of a protective order in connection with the above-captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached for consideration by the Presiding Officer (“ALJ”). The parties have agreed to the terms of the Protective Order.

Dated: January 20, 2023

Respectfully submitted,



Matthew J. Thomas
Kierstan L. Carlson
BLANK ROME LLP
1825 Eye Street N.W.
Washington, DC 20006
(202) 772-5971
Matthew.Thomas@BlankRome.com
Kierstan.Carlson@BlankRome.com

Keith B. Letourneau
BLANK ROME LLP
717 Texas Avenue, Suite 1400
Houston, Texas 77002
(713) 402-7640
KLetourneau@BlankRome.com

**COUNSEL FOR RESPONDENTS
GATEWAY TERMINALS, LLC;
CHARLESTON STEVEDORING
COMPANY; PORTS AMERICA
FLORIDA, INC.; CERES MARINE
TERMINALS, INC.; and SSA
ATLANTIC, LLC**

PROTECTIVE ORDER

Upon stipulation of Complainant, International Longshoreman's Association, and Respondents, Gateway Terminals, LLC ("Gateway"), Charleston Stevedoring Company, LLC ("CSC"), Ports America Florida, Inc. ("PA"), Ceres Marine Terminals, Inc. ("Ceres"), and SSA Atlantic, LLC ("SSA") (collectively "Respondents"), the Parties, through their respective attorneys, and in order to expedite the exchange of certain confidential information, hereby submit the following proposed Protective Order (the "Order") to the ALJ for due consideration and issuance:

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the ALJ, this Protective Order shall apply to all documents, answers to interrogatories, answers to requests for admissions, responses to requests for production of documents, deposition transcripts and exhibits, or other writings produced, given or filed in this action, and all information derived from any of the foregoing, that are designated as "Confidential" or "Attorneys Eyes Only" in accordance with the terms of this Order.
2. A party may designate as "Confidential" any information that is commercially sensitive and is not publicly known, including information provided by third parties to the producing party with the expectation that the information remain confidential ("Confidential Information"). Confidential Information subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party or with prior order of the ALJ, Confidential Information and any information derived therefrom may only be disclosed to:

- a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff, and court-reporters engaged for the preparation of verbatim transcripts in this proceeding;
 - b. employees of the Federal Maritime Commission (“FMC”);
 - c. experts retained by a party; and
 - d. any other person the parties have agreed to in advance in writing.
- 3. A party may designate as Attorney Eyes Only (“AEO”) any information or material whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the producing party’s competitive business interests or the competitive or privacy interests of the producing party’s suppliers, service providers, customers or clients, or of an individual party in this proceeding.
- 4. Information shall be designated by the producing party as Confidential Information or AEO in the following manner:
 - a. in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label “Confidential” or “Attorneys Eyes Only” / “AEO” on the face thereof at the time of production or copying;
 - b. in the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, by noting the designation on the record at the time of the deposition, or within ten business days after receipt of the deposition transcript. The transcript pages and any associated documents containing confidential information shall be bound separately and shall contain on each page, including the

cover page, an appropriate notation identifying it as “Confidential” or “Attorneys Eyes Only” / “AEO”.

- c. In the case of information contained or referenced in legal documents filed with the Commission, including, but not limited to, motions and legal memoranda in support, the parties shall seek to reach agreement regarding the release of information, failing such an agreement by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the words “Confidential” or “Attorneys Eyes Only” / “AEO” on every page containing or referencing the Confidential Information or AEO material. Such documents shall be filed with the Commission under seal. A party that files a pleading in accordance with this paragraph shall promptly serve on the other party a proposed redacted copy of the pleading with the claimed protected information deleted and clearly marked “Proposed Redacted Copy” in the upper right-hand corner of the first page. Within two business days after their receipt of the proposed redacted copy, the receiving party shall advise the party originating the pleading of any additional redactions it requires. The originating party shall promptly provide the other party with a copy of the pleading from which all information that any party has requested be redacted has been redacted and clearly marked “Agreed-Upon Redacted Copy – May be Made Public” in the upper right-hand corner of the page. During the two-day period, the proposed redacted copy shall be treated as protected. At the expiration of the two-day period, or when agreement is reached, the agreed-upon redacted copy shall be filed with the Commission by the originating party; and

- d. in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which procedures shall be consistent with those specified in subparts (a) – (c) of this paragraph 4.
5. It is the responsibility of all persons receiving materials containing Confidential Information or AEO material that is properly marked to maintain such materials in a secure and appropriately identified manner.
6. It is the responsibility of counsel for each party to this action to ensure that those receiving Confidential Information or AEO material properly marked pursuant to this Order have knowledge of the terms of this Order and agree to be bound by them. Prior to any such disclosure, recipients who are approved pursuant to paragraphs 2 (c) or (d) above must read and agree in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient's written acknowledgment shall be kept by the party divulging the confidential information.
7. The designation of information as Confidential or AEO by the producing party shall not waive or affect in any way the right of the receiving party to contest the designation of confidentiality. The designation of confidentiality may be contested as follows:
 - a. Counsel for the parties shall confer in a good faith effort to resolve any differences.
 - b. Failing agreement of the parties, the party objecting to the designation of information as Confidential or AEO may file an appropriate motion with the ALJ and shall (1) certify that s/he has sought in good faith to confer with opposing counsel and has been unable to resolve the dispute by agreement; and (2) identify by specific category or document number the information for which relief is sought.
 - c. Within ten business days of receiving such a motion, the opposing party shall

respond to the motion by showing with particularity with respect to each challenged item of Confidential or AEO information, the reasons why such information has been properly designated as Confidential or AEO.

- d. The burden of establishing that information is Confidential or AEO shall be on the party designating it as such.
 - e. If a response is timely made as provided in subparagraph (c) above, until the motion is ruled upon by the ALJ, the designation of confidentiality shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order.
8. If confidential information in the possession of the receiving party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority to subpoena such information, the party to whom the subpoena is directed shall give written notice of the subpoena (including the delivery of a copy thereof) to counsel for the party that produced the information or documents promptly after the receipt of the subpoena. In the event that the subpoena purports to require production of such Confidential or AEO information on less than 7 days' notice, the party to whom the subpoena is directed shall give immediate email notice of the receipt of such subpoena, and forthwith hand deliver a copy thereof, to the attorney for the producing party.
9. Within thirty days after the conclusion of this proceeding, including any appellate proceedings, all Confidential and AEO information (including copies and documents containing information derived therefrom) shall be destroyed or returned to the producing party, at the election of the receiving party, provided that documents previously filed with the FMC containing such information may either be destroyed or retained under seal and preserved as confidential in accordance with the terms of this Order.
10. The provisions of this Order shall survive and remain in full force and effect after the entry of final judgment, including any appellate proceedings, in this case.

SO ORDERED,

Dated: January __, 2023

EXHIBIT A

AGREEMENT TO ABIDE BY THE TERMS OF PROTECTIVE ORDER

I acknowledge that I have read the foregoing Protective Order and understand its contents, and I hereby agree to abide by its terms and conditions.

NAME: _____

DATE: _____